

STATE OF NEW YORK

5512--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 14, 2025

Introduced by M. of A. BUTTENSCHON, SAYEGH, HAWLEY, GRAY, SANTABARBARA, SHIMSKY, TAGUE, LEMONDES, SIMPSON, BURKE, CLARK, FORREST, FITZPATRICK, BENDETT, ANGELINO, DiPIETRO -- read once and referred to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law, in relation to the regulation of live restraint cable devices to take wildlife; and providing for the repeal of such provisions upon the expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 5 of section 11-1101 of the environmental
2 conservation law is amended to read as follows:

3 5. a. Except as provided in subdivision 1 or 2 of section 11-0523 of
4 this article with respect to destructive and menacing wildlife, no
5 person shall (a) set or use a trap of the leg-gripping type having teeth
6 in the jaws; (b) set a leg hold trap so that wildlife when caught is
7 suspended; (c) use, locate or set a snare or a device consisting of a
8 noose of any material whereby an animal may be taken.

9 b. Notwithstanding the provisions of paragraph a of this subdivision,
10 the department may, by regulation, authorize the use of live restraint
11 cable devices to take coyote and other species as allowed by the depart-
12 ment in the state. The use of live restraint cable devices shall only
13 be permitted for a period of time specified by the department beginning
14 no earlier than December first. Such regulations shall include live
15 cable restraint devices consisting of at least one swivel, a relaxing
16 lock, a deer stop, and a break away device. Such regulations shall also
17 require that any person using a live restraint cable shall check such
18 device at least once every twenty-four hours. For the purposes of this
19 provision:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (a) a swivel is a device incorporated at the end of the cable
2 restraint which allows the captured animal to freely rotate;

3 (b) a relaxing lock is a device that allows the cable loop to stop
4 restricting when the captured animal stops pulling;

5 (c) a deer stop is a device incorporated into the loop of the cable
6 restraint that keeps the cable restraint from closing beyond a specified
7 circumference to allow deer that may encounter the restraint to escape;
8 and

9 (d) a break away device allows the loop of the cable restraint to
10 break open when a specified amount of force is applied.

11 Trappers using live cable restraint devices must complete a training
12 course in their construction and use offered by the department.

13 § 2. This act shall take effect immediately and shall expire and be
14 deemed repealed February 16, 2028.